

		Decl., ¶ 5.) Second, as shown by the allegations in the Complaint, Plaintiff was actually harmed by the Stock Redemption Agreement drafted by Bolduc in that the Stock Redemption Agreement was the instrument which allegedly stripped Plaintiff of his ownership rights in Shield. Bolduc fails to show how, under these circumstances, it can be said Plaintiff personally benefitted from the Engagement Agreement. Furthermore, mere incidental benefit to Plaintiff, as an owner and officer of Shield, is insufficient. Acceptance of such position "would be tantamount to a conclusion that every officer who signs a contract in his representative capacity is a third party beneficiary of that contract," which is not the law. (See <i>Benasra v. Marciano</i> (2001) 92 Cal.App.4th 987, 992.) Based on the foregoing, the motion is DENIED. Counsel for Plaintiff shall give notice.
10	Tarakji v. Secure One Capital Corp.	O/C
11	Baldwin v. Hyundai Motor America	Before the Court at present are the Demurrer and Motion to Strike filed on 12/23/25 by Defendant Hyundai Motor America ("Defendant"), as to the First Amended Complaint ("FAC") filed by Plaintiffs Catherine Baldwin and Terry Baldwin ("Plaintiffs") on 11/25/25. The Demurrer is SUSTAINED on the Fourth and Fifth Causes of Action (each a "COA") with 20 days leave to amend, but otherwise OVERRULED. The Court does not find the six-year statute of repose under § 871.21(b) to apply here. "[A] statute shortening the period of limitations cannot be applied retroactively to wipe out an accrued cause of action that is not barred by the then applicable statute of limitations" (<i>Niagara Fire Ins. Co. v. Cole</i> (1965) 235 Cal.App.2d 40, 43.) Thus, "retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right." (<i>Aronson v. Superior Court</i> (1987) 191 Cal.App.3d 294, 297–298.) The statute of limitations and repose embodied in § 871.21 became effective on January 1, 2025. By that time, almost six years had elapsed since Plaintiffs' purchase of the vehicle "on or around" 4/10/19. (FAC ¶ 6.) Plaintiffs' rights would have been almost immediately cut off if § 871.21 were applied in this context. The Demurrer as to COAs 1–4 on that basis is OVERRULED. However, Defendant has also demurred to COA 4 based on Comm. Code § 2725. The statute of limitations for an implied warranty claim is four years pursuant to Comm. Code § 2725. (<i>Mexia v. Rinker Boat Co., Inc.</i> (2009) 174 Cal.App.4th 1297, 1306.) Plaintiffs assert that tolling applies here as they did not discover the "latent defects" at issue until "shortly before filing the Complaint" as they had "continued to experience symptoms of the Vehicle's defects after Defendant's unsuccessful attempts to repair it and or representations the Vehicle was working as designed." (FAC ¶¶ 26,

		27, 32.) But those are merely conclusory assertions lacking factual specificity. Where a pleading shows on its face that a claim would otherwise be time-barred, the burden is on the plaintiff to state specific facts to show delayed discovery: conclusory allegations will not withstand demurrer. (<i>Carrillo v. County of Santa Clara</i> (2023) 89 Cal.App.5th 227, 234.) The FAC does not meet that standard here. The FAC fails to articulate what the specific defect is, and when and how that was discovered by Plaintiff. The Demurrer as to COA 4 is SUSTAINED on this ground. For COA 5, Defendant’s argument under the economic loss rule (the “ELR”) fails here. <i>Rattagan</i> did not address claims of fraudulent inducement by concealment in the Song-Beverly context. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 41, fn. 12.) In contrast, <i>Dhital v. Nissan North America, Inc.</i> (2022) 84 Cal.App.5th 828 does address such claims in this context. After <i>Rattagan</i> was decided, review of <i>Dhital</i> was dismissed. <i>Dhital</i> thus controls here. Under <i>Dhital</i>, fraudulent inducement by concealment claims are not barred by the ELR. (Id. at 843.) The Demurrer, to the extent it is based on the ELR, is OVERRULED. However, the Demurrer as to COA 5 is SUSTAINED for lack of adequate specificity. Plaintiffs vaguely allege that “Plaintiffs purchased the Subject Vehicle equipped with HYUNDAI’s defective 6-speed transmission,” which “can result in” various problems, but fail to allege what specific problems their vehicle experienced, and when. (FAC ¶¶ 64-66.) Generic claims of defects, without more, will not suffice to state the claim, as “[t]he very existence of a warranty presupposes that some defects may occur.” (<i>Santana v. FCA US, LLC</i> (2020) 56 Cal.App.5th 334, 345.) Greater specificity as to this specific vehicle and the basis for the fraud claim is required. The Demurrer is SUSTAINED on COA 5 on this ground. For COAs 4 and 5, Plaintiffs are granted 20 days leave to amend. However, continued leave to amend should not be presumed: Plaintiffs should ensure that any further amendment fully articulates the factual basis for each claim, including the basis for their tolling claim. In light of the foregoing, the Motion to Strike is MOOT. Case Management Conference is CONTINUED to October 9, 2026, at 9:30 a.m. Defendant is to give notice of these rulings.
12	Rhodes vs. Hartford Insurance Group Inc.	A) Demurrer The demurrer filed by defendants Hartford Insurance Group Inc. and Trumbull Insurance Company (“Defendants” together) against the First Amended Complaint (“FAC”) filed by pro per plaintiffs Emerson Rhodes and Nancy Rhodes (“Plaintiffs” together) is SUSTAINED, with 20 days leave to amend.